
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

RULINGS AND ORDERS

**GRANTING NEWS MEDIA'S
MOTION TO AMEND STANDING
ORDER FOR RULE 4-202.04 NOTICE
OF MOTIONS FOR
CLASSIFICATION;**

**GRANTING NEWS MEDIA'S
MOTION FOR ATTORNEYS EYES
ONLY ACCESS TO CLOSURE
MOTIONS; and**

AMENDED STANDING ORDER

Case No. 251403576
Judge Tony F. Graf, Jr.

Before the court are two motions filed by the News Media: 1) Motion to Amend Standing Order for Rule 4-202.04 Notice of Motions for Classification (dkt. 325); and 2) Motion for Attorney Eyes Only Access to Closure Motions (dkt. 335).

1. Motion to Amend Standing Order for Rule 4-202.04 Notice of Motions for Classification

The News Media requests the court amend the December 29, 2025, Standing Order (dkt 267) to allow counsel 14 days rather than 7 days to respond to motions to classify a record as non-public, consistent with the court's rules of procedure. Neither party objects to this amendment. The News Media's motion to amend the standing order is granted, with some limitations applicable to motions to close hearings as noted in Part 3 of this ruling.

2. Motion for Attorney Eyes Only Access to Closure Motions

The News Media requests “attorney eyes only” access to records that are subject to motions to classify. Defendant opposes a blanket order allowing representatives of the media to access records that are subject to a closure motion. Defendant argues that the parties “are in the best position to assess the amount of information that should be released from an underlying pleading to the News Media while classification and closure issues are being litigated.” Def. Opp. at 5. Defendant seeks an opportunity to raise concerns with the court about serving the underlying record before it is provided to News Media representatives.¹

The News Media has standing to oppose closure and classification motions in this case. The court has already implemented a procedure that allows representatives from the media to be present during closed hearings, subject to a non-disclosure protective order regarding the content of those hearings. This is so because any meaningful argument against closure necessarily requires the media representative to understand the content of the record subject to classification. Counsel for the News Media are officers of the court, and there is no reason to believe that they will not respect the protection and classification orders of this court.

The same policy applies to documents that are subject to a motion to classify as non-public. For the media to meaningfully participate in the adversarial process, its representatives must be aware of the content of the records in question. Indeed, disclosure of the records to the media may even eliminate unnecessary litigation about the record’s appropriate classification. Defendant has

¹ A portion of Defendant’s opposition expresses concern that the News Media seeks access to the underlying record in the motion to classify Defendant’s motion to limit electronic media coverage. Defendant suggests the News Media intends to not only oppose the motion to classify the record but to file an opposition to the underlying motion itself. This ruling requires Defendant to serve an “attorney eyes only” copy of the underlying record to the media, but whether the media has standing to oppose the motion to limit electronic media coverage is not currently before the court.

not advanced any argument about why an “attorney eyes only” protective order on the underlying records would not sufficiently safeguard his or any other parties’ interests.

Accordingly, the News Media’s Motion for Attorney Eyes Only Access to Closure Motions is granted.

3. Amended Standing Order

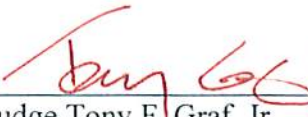
To effectuate these rulings, the court issues the following Amended Standing Order on the procedure applicable to motions to classify a record as non-public:

1. If a party seeks to classify a public record as non-public, the party seeking classification must file a motion consistent with Utah’s rules of procedure. UT R. Jud. Admin. 4-202.04(3)(A).
2. The motion to classify must be filed along with the subject underlying record and a proposed order as allowed by the court’s e-filing system.
3. Pursuant to rule 4.202.04(3)(A), when a motion to classify a record is filed, the court is required to deny access to the record until the court rules on the motion to classify.
4. The moving party must serve the motion to classify on representatives for members of the press who have requested notice in this case. When serving the motion on the press, the moving party must attach a copy of the underlying record it seeks to have classified as non-public. The record in question is subject to an “attorney eyes only” protective order. Counsel for the press may not disclose, disseminate, or reproduce the record or the content of the record to their clients or any other person or entity.
5. If the motion to classify concerns a record that is a document, the News Media must respond to the motion within 14 days or waive any argument opposing classification.

6. If the opposing party or the News Media opposes the motion to classify and requests a hearing, the court will set a closure hearing on the record consistent with rule 4-204.04(4).
7. If the motion to classify concerns a public hearing, the opposing party and the News Media must file an objection to the motion to classify within 14 days of service of the motion or at least 3 days prior to the scheduled hearing, whichever is sooner. The court will address the motion to close at the beginning of the scheduled hearing.

Dated this 23rd day of February, 2026.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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02/23/2026

/s/ TREENA HANSEN

Date: _____

Signature